



File No.: EXP202308161

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On June 7, 2023, a complaint was filed with entry registration number ***REFERENCE.1 before the Spanish Agency for Data Protection against A.A.A. with NIF ***NIF.1 (hereinafter, the complained party). The reasons on which the complaint is based are as follows:

The reasons that substantiate the complaint are as follows:

“My neighbor records us 24 hours a day from his house, the street, the facade of my house, patio, and rooftop, and every time we enter and exit, he harasses us 24 hours a day” (page no. 1).

Documentary evidence is attached to the complaint, which certifies the presence of a device on the exterior facade of the house adjacent to yours (Annex I frames 1-3).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

THIRD: On 06/07/23, 20/07/23, and 12/09/23, written submissions were received from the complained party regarding the facts subject to transfer, arguing the following in the exercise of their right to defense.

“That the system installed complies with data protection regulations.”

The complained party provided various documents evidencing this claim, including a screenshot of the system monitor for analysis by this AEPD.

LEGAL GROUNDS

I

Competence

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

In this case, we proceed to examine the complaint dated June 7, 2023, through which the presence of a device installed on the facade of the house located near yours is reported, which states “that it records them 24 hours a day” and “that it harasses them every time they enter and exit the dwelling.” It should be noted that individuals, in accordance with current regulations, may install cameras on their private property, with no further responsibility than ensuring that the installation complies with the regulations in force.

Article 22, paragraph 1 of the LOPDGDD (LO 3/2018, December 5) provides:

“1. Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities (...).”

The complained party has provided documentary evidence consisting of a screenshot of what is observed with the camera in question.

This agency has proceeded to analyze it, which has a , preventing the capture of any images of public and/or private spaces of third parties.

A privacy mask, for orientation purposes in a video surveillance system, helps us to “hide” a part of the scene being captured by security cameras.

Therefore, it is not possible, with the configuration of the system, for the claims made by the complainant regarding the infringement of their privacy to occur, as the camera is configured to capture images of the complained party's private property exclusively.

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It should therefore be emphasized that the mere observation of a camera from a distance does not imply the processing of any data or the invasion of the privacy of third parties, beyond the fact that given the certain proximity of the residences, it is logically permissible to observe it installed on the facade of the property of the respondent.

Furthermore, all the additional documentation required has been analyzed, showing that the respondent has demonstrated a fully collaborative and diligent attitude in proving its legality, without any irregularities or minimal transgressive behavior of the regulations in force being detected.

Finally, in logical accordance with what has been stated, the existence of any frames associated with the claimant, which could have been captured by the system in question, has not been proven, so there is neither data processing nor invasion of the claimant's privacy.

III

The principle of the presumption of innocence prevents the imposition of an administrative infringement when there is no obtained and verified evidence of the facts that motivate the accusation or of the alleged infringer's involvement in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges, in any case, to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning system and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the play of evidence and a contradictory procedure in which one's own positions can be defended. In this sense, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must translate into an acquittal ruling.

The presumption of innocence governs without exceptions in the sanctioning system and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the play of evidence and a contradictory procedure in which one's own positions can be defended.

According to this principle, no sanction can be imposed based on the guilt of the accused if there is no evidentiary activity that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

IV

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In accordance with the above, having analyzed the arguments of the respondent, it can be concluded that the installed system was at all times in compliance with current legality, which entails ordering the filing of the current procedure.

Accordingly, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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